

2020 Y L R 253

[Lahore]

Before Jawad Hassan, J

FAISAL MALIK and others---Petitioners

Versus

FEDERATION OF PAKISTAN and others---Respondents

Writ Petition No. 48125 of 2019, decided on 27th August, 2019.

Constitution of Pakistan---

---Art. 199---Constitutional petition---Pre-mature---Scope---Prohibition on use of plastic bags---Petitioners, being members of Technical Working Group, filed constitutional petition and contended that the objections raised by them were not considered by the Working Groups, constituted for proper deliberation on the issue of regularization of the use of plastic bags---Validity---Constitutional petition was pre-mature because no adverse action was taken by the authorities and the objections raised by the petitioners were not decided---High Court, converted the writ petition into a representation of petitioners to the Committee, which was, inter alia, directed to consider all the points raised in the representation---High Court directed the Secretary of the department to hold consultative workshop on the draft Act by notifying all the members of the Committee, Working Groups, the stakeholders and all the associations related to the plastic bags to receive their input---Constitutional petition was disposed of, accordingly.

PMDC v. Fahad Malik 2018 SCMR 1956; Sharaf Faridi and 3 others v. The Federation of Islamic Republic of Pakistan through Prime Minister of Pakistan and another PLD 1989 Kar. 404; Muhammad Zia-ur-Rehman and others v. University of Engineering and Technology and others 2013 CLC 512; Engineer Iqbal Zafar Jhagra and others v. Federation of Pakistan and others PLD 2013 SC 224; Dossani Travels Pvt. Ltd and others v. Messrs Travels Shop (Pvt.) Ltd. and others PLD 2014 SC 1; Syed Riaz Ali Zaidi v. Government of the Punjab through Chief Secretary, Lahore and 3 others PLD 2015 Lah. 463 and Subay Khan v. Secretary, Labour, Government of the Punjab PLD 2019 Lah. 253 ref.

Mian Asghar Ali v. Government of Punjab through Secretary (Colonies) BOR, Lahore and others 2017 SCMR 118 rel.

Barrister Momin Malik for Petitioners.

Umair Khan Niazi, Additional Advocate General and Ms. Sadia Malik, Assistant Attorney General for Respondents.

Professor Dr. Asif Ali Qaiser, Polymer Engineer, UET, Lahore, Dr. Yasir Qayyum (Assistant Professor), Polymer Engineer, UET, Lahore, Masood Mukhtar, Secretary, I&C, Irfan Nazir, D.G, EPA, Nawaz Munib, Director (Legal), EPA and Nasim-ur-Rehman, Director, EPA in person.

ORDER

JAWAD HASSAN, J.---Pursuant to the order of this Court dated 26.08.2019, Professor Dr. Asif Ali Qaiser, Polymer Engineer, UET, Lahore, Dr. Yasir Qayyum (Assistant Professor), Polymer Engineer, UET, Lahore, Masood Mukhtar, Secretary, I&C, Irfan Nazir, D.G, EPA, Nawaz Munib, Director (Legal), EPA and Nasim-ur-Rehman, Director, EPA appeared in the Court today. Irfan Nazir, D.G, EPA states that after passing of the order dated 18.06.2019 of the Full Bench of this Court passed in Writ Petition No.29821/ 2019, the Chief Secretary, Services and General Administration Department (Implementation and Coordination Wing), Government of the Punjab has immediately issued the notification on 21st of June, 2019 whereby he constituted a Committee headed by the Additional Chief Secretary, Punjab, with specific Terms of Reference (TORs) for taking input from the stakeholders to formulate a policy guideline for implementable regulatory mechanism. Thereafter, the Committee, after holding its meeting, for proper deliberation of the issues relating to the use of plastic bags, constituted the following four Working Groups:-

- (i) Technical Working Group;
- (ii) Working Group for Legislations;
- (iii) Working Group for Socio-Economic Impacts; and
- (iv) Working Group for Raising Awareness of Plastic Hazards.

In the aforesaid four Working Groups, the members of the Committee have included various Experts, Academics, Scientists, representatives of different NGO's working in the field of environment, all associations relating to plastic bags including Polythene Bags Manufacturing Association, representatives from all the concerned departments of the Government of the Punjab and various civil societies like WWF, Lahore, Architect Environmentalist, Lahore Bachao Tehreek and LCS for Lawyers. Copies of the minutes of the meetings held by all the Working Groups have also been filed by the Respondents Nos.1 to 3 along with their report and parawise comments submitted in the Court today.

2. It is noted that after constitution of the Committee and the Working Groups, various progress has been made regarding the draft of the Punjab Regulation of the Polythene Bags Act, 2019 (the "Draft Act") a copy of which has been handed over to the Petitioner's counsel today. As per information provided by the Director, EPA, the strategy and action plan about implementation of the Draft Act has already been shared with all the stakeholders because the consultation process with the stakeholders is required which is necessary for better enactment of law as it will create sociological and economical impact on the citizens of Pakistan. In this regard, learned counsel for the Petitioner has relied on the judgments reported as PMDC v. Fahad Malik (2018 SCMR 1956), Sharaf Faridi and 3 others v. The Federation of Islamic Republic of Pakistan through Prime Minister of Pakistan and another

(PLD 1989 Karachi 404), Muhammad Zia-ur-Rehman and others v. University of Engineering and Technology and others (2013 CLC 512), Engineer Iqbal Zafar Jhagra and others v. Federation of Pakistan and others (PLD 2013 SC 224), Dossani Travels Pvt. Ltd and others v. Messrs Travels Shop (Pvt.) Ltd. and others (PLD 2014 SC 1) and Syed Riaz Ali Zaidi v. Government of the Punjab through Chief Secretary, Lahore and 3 others (PLD 2015 Lahore 463). This Court in the case of Subay Khan v. Secretary, Labour, Government of the Punjab (PLD 2019 Lahore 253) directed the Secretary, Labour Department to prepare the policy and draft of the law on the issue of domestic workers, which was prepared and shared with the Court and then the Court constituted a Committee which held its meetings with all the Stakeholders to comment on the draft, therefore, when the draft was finalized and enacted, the Court disposed of the said matter by appreciating the efforts of the Government and the Labour Department for the proper legislation on the issue involved by giving certain directions.

3. After the Eighteenth Amendment of the Constitution of Islamic Republic of Pakistan, 1973, the issue of regularization of plastic bags comes within the domain of the Secretary, EPA, Government of the Punjab under the Punjab Government Rules of Business, 2011, according to which the matter of environmental protection is devolved with the Provinces and not with the Federation. The Petitioners, in this writ petition, have approached this Court with the apprehension of the ban on use of plastic bags. The members/ participants of the Committee and Working Groups already constituted by the Chief Secretary, Government of the Punjab, are still going through the whole process of finalizing the relevant law (the Draft Act) by looking into the socio-economic impacts throughout the province of Punjab, highlighting the technical aspects of plastic and creating awareness to the public about its hazards, before the said law is finalized and then enacted.

4. The main issue in this petition is that the objections raised by the Petitioners on 25.07.2019, 19.08.2019 and 21.08.2019, being members of the Technical Working Group, have not been considered by the Working Groups. Since this petition is pre-mature because no adverse action has been taken by the Respondents and objections raised by the Petitioners have not yet been decided, hence, this petition. In this view of the matter, considering the given facts and circumstances of the matter and in order to advance the justice and prevent the miscarriage of justice as laid down in the case of Mian Asghar Ali v. Government of Punjab through Secretary (Colonies) BOR, Lahore and others (2017 SCMR 118), this writ is converted into a representation of the Petitioners to the Committee which will consider all the points raised in the representation and also includes the Petitioners in all the meetings before the Draft Act is finalized and strategy plan on the awareness, social impacts and technical part is made. After receiving all the objections, suggestions, recommendations of stakeholders including the Petitioners, the Committee and the Working Groups shall consider, examine, collate and tabulate and then give effect to the Draft Act.

5. On the suggestions made, the Secretary, I&C, Government of the Punjab will hold a consultative workshop on the Draft Act by notifying all the members of the Committee, Working Groups, the stakeholders and all the association related to the plastic bags including Polythene Bags Manufacturing Association to receive their input. This exercise will be completed within two weeks from the receipt of certified copy of this order under intimation

to the Deputy Registrar (Judicial) of this Court.

6. Before disposing of this petition, I appreciate all the efforts made by the Chief Secretary, Government of the Punjab, members of the Committee as well as the Working Groups and the stakeholders in the matter, which were made pursuant to the order dated 18.06.2019 of the Full Bench of this Court headed by my learned brother Sayyed Mazahar Ali Akbar Naqvi, J.

7. With the above observations, this writ petition is disposed of.

SA/F-21/L

Order accordingly.